Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (CLOSURES) DIRECTION (No 1) 2014

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 6 of 2013 made on 16th September 2013 from the Commission, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 4 September 2014

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction (No 1) 2014*.

Commencement

2. This Direction commences the day after it is registered on the Federal Register of Legislative Instruments.

Cessation

3. This Direction ceases as if it was revoked on 8 September 2019 unless earlier revoked.

To whom this Direction applies

4. This Direction applies to a holder, in the Southern and Eastern Scalefish and Shark Fishery, of a:

a. Gillnet Boat Statutory Fishing Right;
b. South Australian Coastal Waters Gillnet Permit;
c. South Australian Coastal Waters Net and Hook Permit; and/or
d. South Australian Coastal Waters Unknown Method Permit,

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and to a person acting on behalf of the holder.

[**Note**: This means that the Direction does not apply to a person if the person is fishing in the area of the Fishery in accordance with a fishing concession that is subject to another plan of management in force under the Act, under a scientific permit, a permit issued in another fishery, or under a licence issued under a law of a State or Territory.]

Direction not to engage in fishing

5. Fishing by gillnet methods is not to be engaged in in the area of waters of the Southern and Eastern Scalefish and Shark Fishery described in Schedule 1 as the Coorong Dolphin Zone.

Limited Fishing Permitted

6. Notwithstanding paragraph 5 above, a holder described in paragraph 4 may conduct fishing in the Coorong Dolphin Zone if:
    a. the nominated boat:
        i. carries an AFMA observer or is fitted with electronic monitoring equipment; and
        ii. is equipped with a real time electronic logbook system,
    b. the holder has submitted a gear survey to AFMA outlining the fishing gear used by the nominated boat;
    c. the holder has provided a dolphin mitigation plan for the nominated boat to AFMA:
        i. before first commencing fishing in the Coorong Dolphin Zone;
        ii. if the dolphin mitigation plan changes; and
        iii. before recommencing fishing in the Coorong Dolphin Zone if the holder has previously exceeded the rate in paragraph 6.i,
    d. the holder has reported any dolphin caught by the nominated boat in the previous 12 months;
    e. using the nominated boat, the holder has caught one or more dolphins in the Coorong Dolphin Zone:
        i. the holder notifies AFMA of the bycatch event as soon as practicable but in any event no later than 48 hours after returning to port; and
        ii. the holder completes a dolphin bycatch evaluation report and submits it to AFMA within 48 hours after returning to port,
    f. using the nominated boat, the holder has caught one or two dolphins in the Coorong Dolphin Zone in a single gear set the holder ceases fishing immediately and does not undertake the next gear set within 5 nautical miles from any point of the gear set;
    g. using the nominated boat, the holder has caught dolphins in the Coorong Dolphin Zone resulting in:
        i. two dolphin mortalities over different gear sets during a trip;
        ii. three or more dolphin mortalities during a trip; or
        iii. any dolphin mortalities occurring during three different trips within a single review period,

    the nominated boat immediately ceases fishing with gillnets and returns to port until authorised by AFMA to recommence fishing with gillnets;
    h. using the nominated boat, the holder has caught six or more dolphins in the Coorong Dolphin Zone in a single review period, the holder ceases fishing immediately and does not recommence fishing with gillnets in that review period; and

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i. using the nominated boat, at the end of the review period immediately before the current period the holder has not exceeded a dolphin bycatch rate of more than one dolphin mortality for every 50 gear sets.

Definitions & Interpretation

7. For the purpose of paragraph 6:
   a. *catch* means the act of having captured a dolphin in fishing gear and caught has an equivalent meaning;
   b. *dolphin bycatch evaluation report* means a document which describes the details of a dolphin bycatch event;
   c. *dolphin mitigation plan* means a document which describes actions taken by the fisher to minimise the risk of dolphin catches and includes details of fishing practices, gear setup and mitigation devices;
   d. *electronic monitoring equipment* means operational electronic equipment providing information on vessel position and camera images transmitted to AFMA which has been certified in writing by AFMA as suitable for the purpose;
   e. *gear set* means the deployment of a gillnet with at least 4,200 metres of headrope or the equivalent deployment of that length of headrope over two or more shots;
   f. *holder* includes the servants, agents, master and crew of the holder's nominated boat;
   g. *mortality* means if a dolphin:
      i. shows no muscle movement or corneal reflex; or
      ii. is landed alive but has:
         1. minimal movement and hangs limp when released into the water; or
         2. has visible injuries,
   h. *real time electronic logbook system* means an electronic entry logbook transmitted directly to AFMA which has been certified in writing by AFMA as suitable for the purpose;
   i. *review period* means a set time period specified in Schedule 2;
   j. *shot* means the act of fishing with a gillnet from the location at which the fishing gear is first deployed from the boat to the location at which the fishing gear is retrieved by the boat;
   k. *trip* means a series of shots during a fishing operation over a period of time between leaving port and returning to that same or another port;
   l. *notification* means the operator contacts AFMA's Service Once Section with details of the bycatch event including the location of the shot. The notice may be made by phone on 1300 723 621 or by email on licensing@afma.gov.au;

Notes: 1. Terms defined in the Fisheries Management Act 1991 or the Southern and Eastern Scalefish and Shark Fishery Management Plan 2003 (the Plan) have the same meanings in this Direction.

Revocation

8. The *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 10 2013* (F2013L01701) is revoked from the commencement of this direction.

Schedule 1

Area of Closure

That part of the Australian Fishing Zone and coastal waters of the State of South Australia known as the Coorong Dolphin Zone contained within and bounded by a line:

a) Starting at the intersection of 137° 08'E and the low water mark of Kangaroo Island;
b) Then south to 36° 24'S 137° 08'E;
c) Then southeast to 37° 00'S 138° 50'E;
d) Then southeast to the intersection of 37° 09' 24"S and the low water mark of the coast of mainland Australia in the vicinity of Cape Dombey;
e) Then generally northwest along the coast of mainland Australia to the intersection of 138° 08'E and the low water mark;
f) Then south to the intersection of 138° 08'E and the low water mark of Kangaroo Island in the vicinity of Cape Willoughby;
g) Then generally southwest along the coast to the point of commencement.

Schedule 2

Review Period

1. 8 Sep 2014 – 28 Feb 2015
2. 1 March 2015– 31 August 2015
3. 1 Sep 2015 – 29 Feb 2016
4. 1 March 2016– 31 August 2016
5. 1 Sep 2016 – 28 Feb 2017
6. 1 March 2017– 31 August 2017
7. 1 Sep 2017 – 28 Feb 2018
8. 1 March 2018– 31 August 2018
9. 1 Sep 2018 – 28 Feb 2019
10. 1 March 2019– 7 September 2019